

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

July 30, 2026

8:30 a.m./1:30 p.m.

7. KATIE MOYER V. RODNEY LONG

PFL20190731

Respondent filed an ex parte application for emergency orders on January 15, 2026. The court denied the request on January 16th. Respondent filed a Request for Order (RFO) on January 16, 2026, seeking a modification of child custody orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on February 13, 2026, and a review hearing on April 9th. Petitioner was personally served on January 17, 2026.

The court issued an ex parte minute order on January 28, 2026, reassigning the CCRC appointment. Parties were mailed copies at their addresses listed with court.

Only Respondent appeared at the CCRC appointment. As such, a single parent report was filed with the court on February 13, 2026, and mailed to the parties on February 18th.

Petitioner filed a declaration regarding the missed CCRC appointment on February 17, 2026. Respondent was mail served on February 17th. Petitioner asserts she never received the reassignment order and appeared at the originally scheduled location. Petitioner is requesting to be referred back to CCRC.

Respondent filed a declaration on February 23, 2026. Petitioner was served on February 24th.

Respondent filed additional declarations on March 16, 2026. They were served on March 16, 2026.

Petitioner filed a Responsive Declaration on March 18, 2026. It was served on March 11, 2026. Petitioner objects to the requests made by Respondent and asks that the current orders remain in full force and effect. Petitioner proposes slight modifications to the current orders.

Respondent filed a Declaration on April 1, 2026. There is no Proof of Service for this document, and as such, the court has not considered it.

Petitioner filed a Notice of Objection to Respondent's April 1st Declaration. The court finds the objections to be moot.

On April 9, 2026, the court adopted its tentative ruling, rereferring the parties to CCRC and setting a further review hearing.

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

July 30, 2026

8:30 a.m./1:30 p.m.

Respondent filed a Declaration in Opposition to the Motion to Strike on April 13, 2026. It was served on April 13th.

Respondent filed and served two more declarations on April 21st and April 22nd respectively.

Both parties attended CCRC and were able to reach many agreements. A report containing the parties' agreements and further recommendations was filed with the court on May 1, 2026. Copies were mailed to the parties on May 4th.

On June 17th, Petitioner and Respondent each filed a reply declaration to the CCRC report. However there is no Proof of Service for Respondent's declaration therefore, the court has not read or considered it.

The court has read and considered the filings as outlined above. The court finds the parties' agreements and the further recommendations as set forth in the May 1st CCRC report to be in the best interest of the minor. The court adopts the agreements and recommendations as set forth with the following modification. The section titled Parent's Involvement in Child's School Events shall be modified to read – "The non-custodial parent shall have the first option to attend the child's school outings and volunteer in the classroom if the custodial parent is unable to attend or volunteer."

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #7: THE COURT HAS READ AND CONSIDERED THE FILINGS AS OUTLINED ABOVE. THE COURT FINDS THE PARTIES' AGREEMENTS AND THE FURTHER RECOMMENDATIONS AS SET FORTH IN THE MAY 1ST CCRC REPORT TO BE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE AGREEMENTS AND RECOMMENDATIONS AS SET FORTH WITH THE FOLLOWING MODIFICATION. THE SECTION TITLED PARENT'S INVOLVEMENT IN CHILD'S SCHOOL EVENTS SHALL BE MODIFIED TO READ – "THE NON-CUSTODIAL PARENT SHALL HAVE THE FIRST OPTION TO ATTEND THE CHILD'S SCHOOL OUTINGS AND VOLUNTEER IN THE CLASSROOM IF THE CUSTODIAL PARENT IS UNABLE TO ATTEND OR VOLUNTEER." ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

July 30, 2026

8:30 a.m./1:30 p.m.

(FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.